

Court No. - 29

Case :- WRIT - C No. - 45793 of 2009

Petitioner :- Gtl Infrastructures Ltd.

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Ashish Mishra

Respondent Counsel :- C.S.C.,H.P. Dube,P.K. Shukla,Rajesh Tripathi

Hon'ble Sunil Ambwani,J.

Hon'ble Ran Vijai Singh,J.

Learned Standing Counsel appears for respondent No.1. Shri H.P. Dubey and Shri P.K. Shukla appear for the respondents. All the respondents are granted three weeks' time to file counter affidavit. The petitioner will have one week, thereafter, to file rejoinder affidavit. List on 29th September, 2009.

The petitioner company is engaged in the business as infrastructure service provider, for telecommunication services. The application filed by the petitioner company for electricity connection are not being accepted by the respondents on the ground that the applications are not accompanied with the registered lease deed of the premises on which the telecommunication towers are installed.

It is contended that under Paragraph 4.4 (i) of the the U.P. Electricity Supply Code, 2005 it is not necessary to furnish registered lease deed. The consent letters from the owners are sufficient compliance of the requirements of the provisions for obtaining electricity connection.

Learned Standing Counsel submits that paragraph 4.4 (1) requires proof of occupancy such as valid power of attorney, or latest rent paid receipt or valid lease deed, or indemnity form, as per paragraph 4.2, and these documents if the premises are taken on lease would include registered lease deed. The consent letter will not substitute the requirement of registered lease, which attracts the stamp duty for the purposes of obtaining electricity connection. Learned counsel appearing for the respondent Nos.2 to 8 submits that they are bound by the Government Order dated 3.12.2008 (which is not annexed to the writ petition) by which the State Government has directed that unregistered sale deeds/ rent deeds should not be accepted for the purposes of electricity connections.

It is stated that the matter is covered by the several judgments of

this Court. We, however, find that the judgments were given without considering government orders and stand of the State Government.

As an interim measure, we direct that if the petitioner produces consent letters of the owners of the premises, along with requisite affidavits and comply with other conditions, they will be provided electricity connection provisionally, subject to the decision of this writ petition.

List on 29th September, 2009.

Order Date :- 31.8.2009

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Respondent :- State of U.P. and Others

Counsel for Petitioner :- Ashish Mishra

Counsel for Respondent :- C.S.C.,H.P. Dube,P.K.
Shukla,Rajesh Tripathi

Hon'ble Pritinker Diwaker,J.

Hon'ble Ashutosh Srivastava,J.

Counsel for the petitioner prays for three weeks time to ascertain as to whether the petitioner is still interested to prosecute the case.

List this case in the third week of July 2022.

On the next date, if the counsel for the petitioner could not get proper instruction, we may dismiss the writ petition.

Order Date :- 25.5.2022

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(Ashutosh Srivastava, J.) (Pritinker Diwaker, J.)